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8 IN THE FAMILY DIVISION
9 IN THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
10 IN AND FOR THE COUNTY OF WASHOE
11

12 DONOVAN CLARK,

13 Petitioner,

Case No. FV16-01822

14 vs.

Dept. No. 5

15 MEGAN MCCAFFERTY,

16 Respondent.
17 _____/

18 ORDER DENYING EX PARTE MOTION; ORDER TO SET

19 The Court reviewed Ms. McCafferty's Ex Parte Emergency Motion Regarding
20 Children, submitted November 9, 2016. It now finds and orders as follows:

21 Findings of Fact

22 1. The Parties are the parents of one minor child: Alexis May Clark (DOB:
23 February 24, 2014). Mr. Donovan initiated the instant action by filing a Petition to
24 Establish Custody, Visitation and Support on November 3, 2016. There have been no
25 determinations by the Court regarding custody or visitation of the minor child.

26 2. Ms. McCafferty requests the Court order Mr. Clark to return the minor child
27 to her custody. Ms. McCafferty alleges Mr. Clark broke into Ms. McCafferty's home and
28 removed the minor child. Ms. McCafferty argues Mr. Clark is unfit to care for the minor

1 child. Ms. McCafferty states, "I had a TPO on him found out he had his lawyer file for it to
2 be desolved [sic] and then he broke in and took [the minor child]" [sic]. Ms. McCafferty
3 alleges Mr. Clark previously threatened her with a knife, and almost hit her with his car in
4 front of the minor child. Ms. McCafferty alleges Mr. Clark is emotionally and physically
5 abusive. Ms. McCafferty claims Mr. Clark yells and hits, and threatens to kill Ms.
6 McCafferty or to commit suicide in front of the minor child. Ms. McCafferty alleges Mr.
7 Clark does not have any diapers, clothes, or food for the minor child. Ms. McCafferty
8 claims Mr. Clark previously hit Ms. McCafferty's oldest daughter, leaving welts and
9 bruises on the child. Ms. McCafferty alleges she does not know where Mr. Clark is, as he
10 currently does not have an address. Ms. McCafferty avers Mr. Clark admitted to doing
11 meth, and he drinks heavily on a daily basis. Ms. McCafferty alleges Mr. Clark has a "very
12 violent temper."

13 3. The Court notes a related case, Case No. TPO16-01555, regarding the
14 Parties. On November 2, 2016, the Parties appeared for an extension hearing regarding
15 Ms. McCafferty's Temporary Order for Protection Against Domestic Violence, entered on
16 October 3, 2016. At the time of the hearing, Mr. Clark testified negative for illegal
17 substances. The November 7, 2016, Order Denying Extended Order for Protection
18 Against Domestic Violence, provides, "it appears from the sum total of the evidence that
19 the issue between the parties is one of the custody arrangement of the parties' minor
20 child and not domestic violence."

21 Conclusions of Law

22 1. The Nevada Supreme Court specified a "central tenet of our legal system is
23 the concept of notice and hearing. Justice is served only when parties are given adequate
24 notice and an appropriate opportunity to respond in open court." Clark County Sports
25 Enterprises, Inc. v. Kaighn, 93 Nev. 395, 396, 566 P.2d 411, 412 (1977). Accordingly, this
26 Court finds ex parte relief is generally appropriate only when a party or child will be
27 caused immediate or irreparable injury, or where notice would frustrate the very
28 purpose of the order. WDFCR 43(2)(a) and (b)(4).

1 2. Washoe District Family Court Rule ("WDFCR") 43(2)(b) allows the
2 granting of motions on an ex parte basis only in clear and grave emergencies, such as
3 those situations in which there is an imminent threat to the health, safety, and welfare of
4 a party or minor child.

5 3. With the limited and unsubstantiated information provided by Ms.
6 McCafferty, this Court is unable to conclude a party or the minor child's health and
7 safety is in imminent danger. Good causing appearing, Ms. McCafferty's Ex Parte Motion
8 is not the proper subject for ex parte relief and her Motion is DENIED on an ex parte
9 basis. Ms. McCafferty may call law enforcement or the Washoe County Department of
10 Social Services if there are immediate concerns about the minor child's health or safety.

11 4. The Parties are reminded they share joint legal and physical custody of the
12 minor child pending an order of the Court. See NRS 125C.0015(2). Thus, the Parties shall
13 have equal access to the minor child and neither Party shall withhold the minor child
14 from the other Party.

15 5. Issues regarding temporary child custody and support during the
16 pendency of an action are determined at the Case Management Conference. As the
17 Parties have not set a Case Management Conference, within ten (10) days of receipt of
18 this Order, the Parties are directed to jointly contact the Department 5 Judicial Assistant
19 at (775) 328-3186 to set the Case Management Conference.

20 **NRS 200.359 provides that every person having a limited right of custody to a**
21 **child or any parent having no right of custody to the child who willfully detains,**
22 **conceals or removes the child from a parent, guardian or other person having lawful**
23 **custody or a right of visitation of the child in violation of an order of this court, or**
24 **removes the child from the jurisdiction of the court without the consent of either the**
25 **court or all persons who have the right to custody or visitation is subject to being**
26 **punished for a category D felony as provided in NRS 193.130.**

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28 / / /

1 Pursuant to NRS 125.510(7) the terms of The Hague Convention of October 25,
2 1980, adopted by the 14th Session of The Hague Conference on Private International
3 Law, apply if a parent abducts or wrongfully retains a child in a foreign country.

4 IT IS SO ORDERED.

5 Dated: November 10, 2016.

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9 District Judge

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11 Case No. FV16-01822
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CERTIFICATE OF MAILING

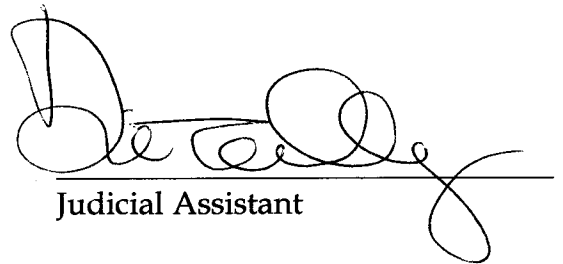
Pursuant to NRCP 5(b), I certify I am an employee of the Second Judicial District Court, and on the 10th day of November, 2016, I deposited for mailing, first class postage pre-paid, at Reno, Nevada, a true and correct copy of the foregoing document addressed to:

Megan McCafferty
6550 Pyramid Way, #37
Sparks, NV 89436

CERTIFICATE OF ELECTRONIC SERVICE

I hereby certify on the 10th day of November, 2016 I electronically filed the foregoing with the Clerk of Court by using the ECF system which will send a notice of electronic filing of the document to:

RICHARD DAVIES, ESQ.


Judicial Assistant